

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 02/02/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09>

Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: C22-01552
CASE NAME: SCHAEFER VS. BNSF RAILWAY COMPANY
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: BNSF RAILWAY COMPANY
TENTATIVE RULING:

Before the Court is Defendant BNSF Railway Company's motion for judgment on the pleadings. The Motion is opposed by Plaintiff Melissa Welsh-Schaefer and Kaylee Mello as well as Plaintiff Ronny Schaefer.

As a threshold issue, Plaintiffs Welsh-Schaefer and Mello argue that the Motion is untimely under CCP § 438(e). Subdivision (e) of section 438 provides that: "No motion may be made pursuant to this section if a pretrial conference order has been entered pursuant to section 575, or within 30 days of the date the action is initially set for trial, whichever is later, unless the court otherwise permits."

Case law under this section allows courts the broadest of discretion to conclude what the court “otherwise permits.” Specifically, section 438, subdivision (e) “authorizes the trial court to permit late filings of such motions and does not specify any grounds which might serve to limit its power to do so.” (*Sutherland v. City of Fort Bragg* (2000) 86 Cal.App.4th 13, 25, fn. 4; see *Burnett v. Chimney Sweep* (2004) 123 Cal.App.4th 1057, 1063 [§ 438, subd. (e) permits late filings of motions for judgment on the pleadings and does not impose a “good cause” requirement].)

First, as noted by Defendant on reply, no pretrial conference order has yet been entered and there is currently no trial date. Second, even if the motion were untimely, the Court could permit it in its discretion.

Defendant moves pursuant to Code of Civil Procedure section 438 for judgment on the pleadings on the grounds that Plaintiffs’ “are estopped from claiming that the railroad crossing at which the incident occurred was in or represented a dangerous condition at the time of the incident pursuant to the Court’s prior order granting the City of Oakley’s Motion for Summary Judgment.

For the following reasons, the motion is **DENIED**.

Judicial Notice

Defendant requests judicial notice of the Court’s Order After Hearing granting City of Oakley’s Motion for Summary Judgment. The unopposed motion is **GRANTED**. (Evid. Code §§ 452, 453.)

Legal Standard

The standard for granting a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer. (*Burnett v. Chimney Sweep* (2004) 123 Cal.App.4th 1057, 1064.) As a consequence, it may be granted if, from the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (Code Civ. Proc. § 438(d); *Saltarelli & Steponovich v. Douglas* (1995) 40 Cal.App.4th 1, 5; Weil & Brown, Civ. Pro. Before Trial (The Rutter Group 2010) p. 7:292.) As such, a motion for judgment on the pleadings involves the same type of procedures that apply to a general demurrer. (*Richardson-Tunnell v. School Ins. Program for Employees* (2007) 157 Cal.App.4th 1056, 1061; *Burnett, supra*, 123 Cal.App.4th at p. 1064.) In considering a motion for judgment on the pleadings, courts consider whether the factual allegations, assumed true, are sufficient to constitute a cause of action. (*Fire Ins. Exchange v. Sup. Ct.* (2004) 116 Cal.App.4th 446, 452-453.) Also, like a demurrer, a motion for judgment on the pleadings does not lie as to only part of a cause of action. (*Id.* at p. 452; Weil & Brown, Cal. Practice Guide: Civ. Pro. Before Trial (The Rutter Group 2025) p. 7:295.)

Brief Factual Background

This case arises out of an accident at a railroad crossing. Plaintiffs allege that Decedent Joshua Schaefer was released from Delta Vista Middle School at approximately 12:30 p.m. on August 25, 2021. (SAC at ¶ 23.) Kaylee Mello was driving Decedent home from school when she proceeded over East Cypress Road toward Main Street. (*Id.* at ¶ 24.) Plaintiffs allege that Mello’s vehicle proceeded over the railroad tracks and passed the crossbuck before any warnings were activated and before the crossing arm began to descend. (*Id.*)

Plaintiff alleges that “as a result of the lack of appropriate railroad preemption and improper signal light timing at surrounding intersections, the confusing and unsafe lane configuration changes, and simultaneous dismissal of a thousand students, and the failure to provide a reasonable TCP with adequate warnings to drivers, the subject railroad crossing became a trap and Mello’s vehicle, as well as other vehicles, including vehicles driven by Kathryn Mandap and Carmen Ortiz-Guzman, became

unexpectedly trapped on the subject railroad crossing.” (SAC at ¶ 25.)

A BNSF freight train struck Mello’s vehicle at approximately 12:51 p.m., “causing Joshua Schaefer to sustain multiple severe physical injuries which resulted in his death.” (SAC at ¶ 26.)

Analysis

Defendant moves for judgment on the pleadings on the grounds that Plaintiffs “are estopped from claiming that the railroad crossing at which the incident occurred was in or represented a dangerous condition at the time of the incident pursuant to the Court’s prior order granting the City of Oakley’s Motion for Summary Judgment.” (Notice at 1:28-2:2.)

There are two separate types of *res judicata*: claim preclusion and issue preclusion. “Claim preclusion, the primary aspect of *res judicata*, acts to bar claims that were, or should have been, advanced in a previous suit involving the same parties. [Citation.] Issue preclusion, the secondary aspect historically called collateral estoppel, describes the bar on relitigating issues that were argued and decided in the first suit.” (*DKN Holdings LLC v. Faerber* (2015) 61 Cal.4th 813, 824 (*DKN Holdings*) [internal quotation marks omitted].)

Claim Preclusion

“Claim preclusion ‘prevents relitigation of the same cause of action in a second suit between the same parties or parties in privity with them.’ [Citation.] Claim preclusion arises if a second suit involves (1) the same cause of action (2) between the same parties (3) after a final judgment on the merits in the first suit.” (*DKN Holdings, supra*, 61 Cal.4th at p. 824.) “As applied to questions of preclusion, privity requires the sharing of ‘an identity or community of interest,’ with ‘adequate representation’ of that interest in the first suit, and circumstances such that the nonparty ‘should reasonably have expected to be bound’ by the first suit. [Citation.] A nonparty alleged to be in privity must have an interest so similar to the party’s interest that the party acted as the nonparty’s ‘virtual representative’ in the first action.” (*Id.* at p. 826.)

Claim preclusion does not apply because this is not a second suit; as a consequence, the Court need not reach the additional elements and turns to the issue of whether issue preclusion applies.

Issue Preclusion

Issue preclusion “prohibits the relitigation of issues argued and decided in a previous case, even if the second suit raises different causes of action. [Citation.] Under issue preclusion, the prior judgment conclusively resolves an issue actually litigated and determined in the first action.” (*DKN Holdings, supra*, 61 Cal.4th at p. 824.) Unlike claim preclusion, “issue preclusion does not bar entire causes of action. Instead, it prevents relitigation of previously decided issues.” (*Id.*) Also unlike claim preclusion, “issue preclusion can be raised by one who was not a party or privy in the first suit.” (*Id.*)

“In summary, issue preclusion applies: (1) after final adjudication (2) of an identical issue (3) actually litigated and necessarily decided in the first suit and (4) asserted against one who was a party in the first suit or one in privity with that party.” (*DKN Holdings, supra*, 61 Cal.4th at p. 825.)

Defendant argues that the issue of whether the roadway at the Subject Crossing constituted a dangerous condition was “fully litigated and necessarily decided pursuant to a final decision on the merits.” (Motion at 7:2-3.)

Critically, for issue preclusion to apply, the decision must be final and on the merits. The basic rule is that while an appeal is pending, a judgment is not final. (*McKee v. National Union Fire Ins. Co.* (1993) 15 Cal.App.4th 282, 286.) This is because “a judgment does not become final so long as the action in

which it was rendered is pending and an action is deemed pending until it is finally determined on appeal or until the time for appeal has passed. The determination of the issue in the case is held in abeyance until the appeal is finally decided by an appellate court and the appeal operates to “keep alive the case ... as it existed before the judgment was rendered.” ’ ’ (Id. at p. 288.) An appeal is final on the date remittitur issues. (*Hoover v. Galbraith* (1972) 7 Cal.3d 519, 525–526; *Cory v. Poway Unified School Dist.* (1983) 147 Cal. App. 3d 1158, 1165; *Macedo v. Bosio* (2001) 86 Cal.App.4th 1044, 1051, fn. 5.)

Here, Plaintiff Ronny Schaefer filed and served a Notice of Appeal from judgment after the order granting the City’s Motion on October 31, 2025. Plaintiff’s appeal is currently pending with the First Appellate District, Division 1, Case Number A175225. (Rose Decl., ¶ 4, Ex. 3.) As a consequence, issue preclusion is not available because the judgment is not final.

Even if the Court were to conclude that there had been a “final adjudication,” the Court does not conclude that defendant BNSF Railway Company has shown that the issue decided previously is identical with the one sought to be precluded. (See *Ayala v. Dawson* (2017) 13 Cal.App.5th 1319, 1332 [for purposes of issue preclusion a “final judgment” includes any prior adjudication of an issue in another action that is determined to be sufficiently firm to be accorded conclusive effect.].)

A corollary of the rule that collateral estoppel is confined to issues “actually litigated” is the requirement that the issue decided previously be “identical” with the one sought to be precluded. (*United States Golf Assn. v. Arroyo Software Corp.* (1999) 69 Cal.App.4th 607, 616.)

Here, the previous issue litigated was whether the City of Oakley’s public property was in a dangerous condition within the meaning of Government Code section 835. Against BNSF, Plaintiffs have alleged a cause of action for negligence. However, Defendant BNSF’s liability for negligence is not coextensive with the issue of whether the City of Oakley is liable for dangerous condition of public property. Consequently, the issue decided in the City of Oakley’s motion for summary judgment is not identical to the issue for which BNSF seeks preclusion.

The motion for judgment on the pleadings is **DENIED**.

2. 9:00 AM CASE NUMBER: C22-01552
CASE NAME: SCHAEFER VS. BNSF RAILWAY COMPANY
***HEARING ON MOTION IN RE: BIFURCATE LIABILITY FROM DAMAGES.**
FILED BY: BNSF RAILWAY COMPANY
TENTATIVE RULING:

Before the Court is Defendant BNSF Railway Company’s motion to bifurcate liability from damages. The Motion is opposed by Plaintiff Melissa Welsh-Schaefer and Kaylee Mello as well as Plaintiff Ronny Schaefer.

For the following reasons, the motion is **DENIED**.

Legal Standard

Upon a properly noticed motion of a party made no later than the close of pretrial conference, or in other cases, no later than 30 days before the trial date, a court may bifurcate a trial into separate issues when the convenience of witnesses, the ends of justice, or the economy and efficiency of